

Calaveras Superior Court Civil Law & Motion Calendar; Friday, May 21, 2021; Hon. David M. Sanders, Courtroom #2

9:00 AM 14CV40119 Ptff's Motion to Consolidate for Trial Only (14CV40365) 05/21/2014 08/02/2021 Settlement Conference

Ptff/Pet: Sarkis, Lawrence J.

Atty: Berliner Cohen

Def/Res: Angels Gun Club; Angels Gun Club; Verhalen, Dave

Atty: Porter Scott

Tentative Ruling: Although a complaint was filed on May 21, 2014, the matter was stayed for several years due to a Notice of Appeal filed by defendant Angels Gun Club on April 7, 2016. The order disqualifying defendant's counsel was vacated and set aside on December 18, 2019. Although no trial date has been set, plaintiff filed this motion on April 27, 2021.

Plaintiff's Request for Judicial Notice is GRANTED as to Exhibits 1, 2, and 3, pursuant to Evidence Code sections 452 and 453.

Code of Civil Procedure §1048(a) provides that "[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." In the matter at hand, the cases sought to be consolidated do not involve common questions of law or fact. The cases do not share a common transaction, incident, or wrongful act. Consolidation is appropriate when there are common issues of fact and overlapping issues of law.

Contrary to the numerous and expansive issues in case number 14CV40365, the single issue in case number 14CV40119 is limited to California Corporations Code section 7341 and whether plaintiff was wrongly terminated from Angels Gun Club. These two actions do not involve common questions of fact or law and the cases are inappropriate for consolidation. Additionally, although there is some overlap of parties between the two actions, the concurrence of parties is not complete. Therefore, based on the foregoing, plaintiff's motion for consolidation is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff shall prepare the formal order pursuant to Rule of Court 3.1312.

9:00 AM 14CV40365 Ptff's Motion to Consolidate for Trial Only (14CV40365) 09/19/2014 06/04/2021 Motion Hearings (2)
08/02/2021 Settlement Conference

Ptff/Pet: Bachelor, Kathi; Richards, David; Sarkis, Lawrence J.; Von Latta, Chuck

Atty: Berliner Cohen

Def/Res: Angels Gun Club; etal

Atty: Porter Scott; Levangie Law Group

Tentative Ruling: Although the original complaint was filed on September 19, 2014, this matter was stayed for several years due to a Notice of Appeal filed by defendant Angels Gun Club on April 7, 2016. The order disqualifying defendant's counsel was vacated and set aside on December 18, 2019. Although no trial date has been set, plaintiff filed this motion on April 27, 2021.

Plaintiffs' Request for Judicial Notice is GRANTED as to Exhibits 1, 2, and 3, pursuant to evidence Code sections 452 and 453.

Code of Civil Procedure §1048(a) provides that "[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." In the matter at hand, the cases sought to be consolidated do not involve common questions of law or fact. The cases do not share a common transaction, incident, or wrongful act. Consolidation is appropriate when there are common issues of fact and overlapping issues of law.

Contrary to the numerous and expansive issues in case number 14CV40365, the single issue in case number 14CV40119 is limited to California Corporations Code section 7341 and whether plaintiff was wrongly terminated from Angels Gun Club. These two actions do not involve common questions of fact or law and the cases are inappropriate for consolidation. Additionally, although there is some overlap of parties between the two actions, the concurrence of parties is not complete. Therefore, based on the foregoing, plaintiff's motion for consolidation is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff shall prepare the formal order pursuant to Rule of Court 3.1312.